

“The term ‘injury’ for purposes of section 340.5 ‘refer[s] to the damaging effect of the alleged wrongful act and not to the act itself.’” (*Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 779.) “An injury manifests when damage is ‘evidenced in some significant fashion; when the damage has clearly surfaced and is noticeable.’” (*Filosa, supra*, 59 Cal.App.5th p. 779 [internal citation omitted].)

The Plaintiff also cites and relies on *Steingart v. White* (1988) 198 Cal.App.3d 406, in which the plaintiff discovered a lump in her breast, which the defendant doctor diagnosed as a benign condition in February 1982. The *Steingart* court rejected the defendant’s argument that the plaintiff suffered an injury at the time the defendant examined her in 1982, instead concluding that – although the plaintiff knew about the lump at the time of the 1982 examination – “such a condition is not a clear indication of injury, either damaging effect or appreciable harm.” (*Steingart, supra*, 198 Cal.App.3d at pp. 414–415.) One Court has stated the proposition more clearly: “We accept the *Steingart* proposition that severe damage which does not show itself (hidden cancer, for instance) is not ‘injury’ until it is found by diagnosis.” (*Marriage & Family Center v. Superior Court* (1991) 228 Cal.App.3d 1647, 1654, modified (Apr. 25, 1991).)

Here, Plaintiff alleges sufficient facts that his injury did not manifest until his cancer diagnosis in June 2025. Plaintiff alleges that he went to Redlands’ emergency room in March 2015, after he had experienced abdominal pain and vomiting. Plaintiff was not informed of the growth on his kidney, nor was he informed of the recommendation that he should undergo a urogram. The complaint does not allege that Plaintiff had any other symptoms until more severe symptoms in June 2025. This triggered Plaintiff visiting another hospital, where he was diagnosed with renal cancer. A month later, Plaintiff found out that he had a growth on his kidney dating back to at least March 2015.

In this matter, Plaintiff alleges he had no other symptoms until 10 years later when he had bloody urine in June 2025. No other facts exist to show that Plaintiff had become aware of additional, appreciable harm. In the same month, Plaintiff sought medical care and was diagnosed with renal cancer. Plaintiff filed his complaint in January 2026, within six months of the date of injury. As such, Redlands statute of limitations argument is not demonstrated from the face of the complaint.

15. *White v. General Motors, LLC, et al*, Case No. CIVSB2515608
Plaintiff's Motion for Attorneys' Fees
7/30/26, 10:00 a.m., Dept. S-17

Tentative Ruling

The Court would **AWARD** \$21,070.00 in attorneys' fees, plus costs in the amount of \$752.26.

Statement of Law

In general, attorneys' fees, costs, and expenses are recoverable under the Act, Civil Code section 1794, subdivision (d), which provides:

If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.

To prevail under the Act, the buyer must have recovered damages or other legal or equitable relief. (Civ. Code, § 1794(a).) The burden is on the party seeking attorney fees to prove the fees are reasonable. (*Goglin v. BMW of North America, LLC* (2016) 4 Cal.App.5th 462, 470.)

Analysis

Here, Plaintiff asserts attorneys' fees in the amount of \$24,170.00 (per stated lodestar) and costs in the amount of \$752.26. (Abraham Decl., ¶15 & Exh. 7.) Plaintiff, however, also seeks a 1.2x multiplier. (*Ibid.*) Thus, Plaintiff seeks \$29,756.26 in total.

As to multiplier: The case does not warrant a multiplier. In this case, there is nothing novel about the legal or factual questions involved nor does the display of skills warrant a multiplier. While the case may have been taken on a contingency, that factor alone does not warrant a multiplier. (See *Serrano v. Priest* (1977) 20 Cal.3d 25, 40 [factors including (1) novelty and difficulty; (2) skill displayed; (3) extent to which litigation precluded other work; and (4) contingency nature].)

As to attorney rates: The rate used is high given rates in the geographic region. A rate of \$575 per hour is more reasonable for an attorney Plaintiff's counsel's experience taking a lemon law case on a contingency basis in this locale. Otherwise, the \$200 rate for the more generalized or clerical tasks seems reasonable.

As to fee reduction arguments: As for the reasonableness of the time expended, the motion is supported by billing records that largely itemize tasks into singular task-types or which include closely related activities. Most of the tasks were also only billed for fractions of an hour and those tasks that exceed an hour involve tasks that usually take longer, such as the initial disclosures, preparing for and attending mediation, or tasks or anticipated tasks related to the

fee motion. From a big-picture standpoint, the case has been pending for about 17 months. As a result, Plaintiff's counsel's firm only averaged around 2.36 hours a month (41.5 hours of attorney time claimed divided by 17 months). There is also no duplication of work given the single attorney working the case.

In the opposition, Defendant identifies nearly a dozen tasks that it contends were "clerical." While clerical staff could perform some of the tasks identified, e.g., drafting the summons, drafting the civil case cover sheet, etc., it would not be unreasonable for an attorney to draft those documents as well since they are filed with the Court, especially when, as is the case here, the attorney is already drafting the accompanying complaint. Other tasks highlighted by Defendant include some clerical-type work, but they are intertwined with higher-level work, e.g., organizing documents and the file, but also summarize and itemize their contents. Even the organization of the repair orders entails reviewing them and calculating how they should be organized for later use in the litigation. Overall, no reductions are warranted on this argument.

Defendant also contends that certain tasks billed are duplicate. However, revisiting documents to review them, such as for accuracy, before filing documents is not "duplicate" *per se* nor was it unreasonable for counsel to re-review documents to create a settlement calculation.

Overall, the time expended appears reasonable. Using the reduced rate, the loadstar amount would be \$21,070 (calculated using 34.8 hours [the 40.1 hours claimed, minus the 5.3 hours billed at \$200 per hour] multiplied by \$575 per hour or \$20,010, plus \$1,060 [or the other 5.3 hours claimed at the \$200 rate].)

As to costs: "Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding." (Code Civ. Proc. § 1032, subd. (b).) Absent statutory authority, the Court has no discretion to deny costs to the prevailing party. (*Nelson v. Anderson* (1999) 72 Cal.App.4th 111, 129.) Here, costs appear supported.
